

		Defendants have not cited any authority supporting their proposition that filing a motion for a protective order preserves their objections. Nor is the court aware of any. As the leading treatise on civil pretrial procedure cautions: “Protective orders usually are sought ‘under the gun’ because responses are due. If the opposing side is unwilling to stipulate to an extension, you may have to obtain a court order shortening the time for hearing or extending the time to respond until after the hearing on the protective order (<i>in order to avoid waiver of any objections</i>)[.]” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, 2026), ¶ 8:1007, p. 8F-4 [emphasis added].) Further, Defendants have not satisfied the requirements to obtain relief from waiver of their objections under section 2030.290, subd. (a). Accordingly, the court finds Defendants waived their objections to the SROGs, including ones based on privilege or on the protection of work product. Based on the foregoing, Plaintiff’s motions to compel are granted, in part, as to nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182. The motion is denied, in part, as to the remaining SROGs and the request for sanctions. Defendants are ordered to serve verified responses, without objections, to plaintiff’s special interrogatories, set two, nos. 47-50, 59-62, 67-70, 83-86, 87-90, 91-94, 95-98, 99-102, 118 121, 130-133, 150-153, and 178-182, within 14 days.
8	24-01400761 <i>National Funding, Inc. vs. Slide & Ride LLC</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record The motions of attorney Jefferey P. Boykin to withdraw as attorney of record for Defendants David King and Slide & Ride LLC is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for clients effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice.
9	25-01485328 <i>Rideout vs. MT Power Group</i>	Motion for Summary Judgment and/or Adjudication Defendant MT Power Group’s Motion for Summary Judgment is GRANTED. Defendant’s request for judicial notice of the Complaint, although not necessary, is granted. The Court declines to rule on Defendant’s objections to portions Plaintiff’s deposition because the objections are not dispositive to the motion. “The existence of a duty owed by a defendant to a plaintiff is a question of law for the court” (<i>Garcia v. Paramount Citrus Assn., Inc.</i> (2008) 164 Cal.App.4th 1448, 1453.) “In determining whether a duty should be imposed in a particular case, a court must consider the following factors in the circumstances of the case: the foreseeability of harm to the injured party, the degree of certainty that party has suffered injury, the closeness of the connection between the condition of the property and the injury, the moral blame attached to the landowner’s conduct, the policy of

		preventing future harm, the extent of the burden the duty would impose compared to the benefit to the community from imposing the burden, and the practical availability of insurance for the risk involved (that is, cost, prevalence and availability of such insurance).” (<i>Id.</i> at 1454 [citing to <i>Rowland v. Christian</i> (1968) 69 Cal.2d 108, 113].) “California law requires landowners to maintain land in their possession and control in a reasonably safe condition. In the case of a landlord, this general duty of maintenance, which is owed to tenants and patrons, has been held to include the duty to take reasonable steps to secure common areas against foreseeable criminal acts of third parties that are likely to occur in the absence of such precautionary measures.” (<i>Wiener v. Southcoast Childcare Centers, Inc.</i> (2004) 32 Cal.4th 1138, 1146 (cleaned up).) “In the case of a criminal assault, the decision to impose a duty of care to protect against criminal assaults requires balancing the foreseeability of the harm against the burden of the duty to be imposed. In cases where the burden of preventing future harm is great, a high degree of foreseeability may be required. On the other hand, in cases where there are strong policy reasons for preventing the harm, or the harm can be prevented by simple means, a lesser degree of foreseeability may be required.” (<i>Ibid.</i>) “While there may be circumstances where the hiring of security guards will be required to satisfy a landowner's duty of care, such action will rarely, if ever, be found to be a minimal burden. The monetary costs of security guards is not insignificant. Moreover, the obligation to provide patrols adequate to deter criminal conduct is not well defined. No one really knows why people commit crime, hence no one really knows what is adequate deterrence in any given situation. Finally, the social costs of imposing a duty on landowners to hire private police forces are also not insignificant. For these reasons, we conclude that a high degree of foreseeability is required in order to find that the scope of a landlord's duty of care includes the hiring of security guards. We further conclude that the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner's premises.” (<i>Ann M. v. Pacific Plaza Shopping Center</i> (1993) 6 Cal.4th 666, 679.) Defendant has satisfied its burden of showing Plaintiff cannot establish Defendant owed patrons a duty to prevent criminal conduct by third parties. This incident is the only customer on customer violence that has occurred at Defendant’s store. (Mint Depo., 39:14-17.) Thus, there are no sufficiently similar incidents to impose a duty to hire a security guard or take other additional measures to prevent criminal conduct. Thus, the burden shifts to Plaintiff to show an issue of material fact as to whether there were sufficient similar incidents to warrant imposing the duty on Defendant. Plaintiff has failed to show sufficient prior similar incidents. Plaintiff claims Defendant calling the police approximately 30 times in the years leading up to the incident as similar. However, the calls were mostly
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		regarding theft or trespassing, not physical violence. (Mintz Depo., 23:25-24:16.) Plaintiff also claims having homeless persons on the premises is a factor which should be considered. However, Plaintiff offers no explanation as to how the presence of homeless persons inherently makes the premises dangerous or create a high degree of likelihood that physical violence will occur on the premises. Additionally, Plaintiff has not even established the unidentified person was homeless himself. Thus, it is unclear how this incident is connected to the presence of homeless persons, unless Plaintiff and her counsel are suggesting the presence of homeless persons implicates a high degree of likelihood of violent crime. There are only two other incidents of physical violence that occurred on the premises in the four years leading up to the incident. In first incident, Defendant's employee, Mitchell, told a person he was not allowed to stand in front of the store who became belligerent and told Mitchell he was not going to leave. Mitchell approached the man and the man swung at him with a beer bottle but missed. (Mintz Depo., 27:5:28:6.) In the second incident, a man was instructed to leave because his claimed service animal was not on a leash. The man went to his RV in the parking lot. When Mintz came to collect a shopping cart near the RV, the man threatened Mintz warning he would attack Mintz if he got near. The man shoved Mintz when he came to collect the cart. (Mintz Depo., 29:4-30:2.) In both incidents there were real warning signs of agitation and the employees proceeded in the face of those signs. However, in Plaintiff's case, she was attacked unprovoked. Thus, the incidents are distinct and infrequent. Thus, Plaintiff has failed to demonstrate there was a high degree of foreseeability of criminal conduct which warrants imposing a heightened duty on Defendant to prevent the criminal conduct of the unidentified person. Additionally, even assuming Defendant had a duty to protect Plaintiff, Plaintiff has failed to present any evidence Defendant knew of any of the behavior Plaintiff claims precipitated the attack. Accordingly, summary judgment is proper.
10	25-01466414 <i>Seeds vs. General Motors, LLC</i>	Motion to Compel Deposition (Oral or Written) Defendant General Motors LLC's Motion for Compliance Pursuant To C.C.P. § 871.26 is GRANTED. Defendant moves to compel plaintiff Gary N. Seeds to appear for his initial deposition and for monetary sanctions against Plaintiff's attorneys, Strategic Legal Practices, APC, in the sum of \$1,500. Defendant brings this Motion pursuant Code of Civil Procedure section 871.26, subdivisions (c)(1) and (j)(2), which state: (c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: